

## PERFORMANCE OF WORK STATEMENT

### DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

Scope of Work (SOW). The contractor shall furnish all labor, tools, materials, equipment, transportation and supervision, except as specified hereinafter as government-furnished, to manage and perform all operations for the collection and off-post disposal of solid waste generated at Tobyhanna Army Depot (TYAD), Tobyhanna, Pennsylvania. Performance shall be according to the terms, conditions, specifications and standards contained herein and the contractor shall comply with all laws, ordinances, statutes and regulations pertaining to the collection, transportation and disposal of refuse and shall obtain such permits, licenses or other authorizations as may be required. The contractor shall be bound by any and all laws which bind TYAD.

The contractor is also to provide weekly recyclable pickups from several collection points. Weekly collection shall occur during first shift, between 8:00 a.m. and 2:00 p.m., on weekdays when TYAD is open. Should on-call maintenance or collection be needed, it shall occur during the same hours of first shift, and it shall occur within 48 hours of the request. Materials that needs to be collected for recycling includes: glass, plastics, cardboard, and paper. The contractor is to provide six (6) containers for this collection process, a single stream collection method is preferred.

No government personnel will be furnished to perform work determined to be the contractor's responsibility or to operate equipment or facilities provided under this contract. All fuel and lubricants shall be furnished by the contractor. The contractor has the sole responsibility for providing personnel and equipment necessary for the performance of this contract. The contractor has the sole responsibility for assuring all operators and other personnel employed by him are competent and qualified to perform the services required hereunder.

Quality Assurance (QA). The government will monitor the contractor's performance under this contract using a Quality Assurance Surveillance Plan (QASP).

Damages Caused by the Contractor. The contractor shall be held accountable and liable to the government for any damages to government facilities, fixtures, furnishings, equipment or grounds caused by the contractor or his employee.

### CONTRACTOR-FURNISHED ITEMS.

It is the responsibility of the contractor to furnish all parts, materials, supplies, tools, equipment and safety clothing necessary to meet the requirements of this contract, except for the front load containers already on-site.

### Contractor's Collection Equipment.

All refuse collection vehicles shall be specifically designed for the purpose and must be compatible with the government containers on site. Vehicles shall be painted to present a neat

appearance and have the contractor's name affixed on both sides of the vehicle.

All vehicles shall be in fully operable condition and meet all federal, state and local safety requirements, as applicable and 40 CFR 243. Vehicles shall be equipped with enclosed type bodies sufficiently tight to prevent spillage and must be maintained to prevent dripping or leaking of oil and hydraulic fluids. The contractor shall carry sufficient materials on vehicles that enter TYAD to contain and clean up any spilled petroleum products, oil, hydraulic fluid or other toxic material.

The contractor shall notify the Fire Department and the COR immediately if any oil, hydraulic fluid or other toxic material is spilled onto the pavement or ground. Clean up of spilled materials from contractors vehicles shall be at the contractor's expense.

Contractor vehicles which become inoperative or break down shall be moved off-post within four hours. The contractor will be allowed to perform only minor repairs to vehicles on-post.

Vehicles shall be operated in a safe manner in compliance with the federal, state and TYAD regulations. (TYAD Regulation 190-5.)

Vehicles for the collection, storage and transportation of solid waste shall be in compliance with ANSI Z245.1.

#### APPLICABLE DOCUMENTS.

Documents applicable to the Statement of Work specification under the contract are listed below, all documents are mandatory unless otherwise stated. The contractor is only obligated to follow those coded as mandatory and only to the extent stated in the specification/Statement of Work when a specific part of the document is referenced herein. The contractor is responsible to obtain copies of all referenced documents at his own expense except for those mentioned in 5.3 these regulations will be provided upon award. Supplements and amendments to mandatory publications shall be considered to be in full force and effective immediately upon receipt by the contractor. It is the contractor's responsibility to ensure that the current copies of all mandatory publications are complied with as applicable.

#### Advisory Documents.

AR 58-1 Management, Acquisition and Use of Motor Vehicles

TM 5-634 Solid Waste Management

#### Code of Federal Regulations.

40 Code of Federal Regulations (CFR) Subchapter I - Solid Wastes Parts 240 through 258

29 Code of Federal Regulations (CFR) 1910

Pennsylvania Department of Environmental Protection (PA DEP) Regulations.

Pennsylvania Act 101: Municipal Waste Planning, Recycling and Waste Reduction Act of 1988

Pennsylvania Solid Waste Management Act Title 25, Chapter 273,  
Infectious and Chemotherapeutic Waste Disposal 1988\*

Title 25, Pennsylvania Code, Chapters 271 through 285 Municipal Waste

Title 25, Pennsylvania Code, Chapters 287 through 299 Residual Waste

Monroe County Solid Waste Management Plan of 1990

Waste Transportation Safety Act (Act 90)

Commercial.

Mandatory Document.

American National Standard Institute (ANSI) Z245.1 Safety Standards for Refuse Collection Equipment

SPECIFIC TASKS.

Personnel and Collection Methods. The contractor shall have sufficient manpower to carry out all the terms of this contract.

Collection Requirements.

Containers. All containers shall be emptied in accordance with specifications listed, except as outlined in Special Collections described hereinafter. Definite routes shall be assigned each collection vehicle, and these vehicles will traverse those routes each day and empty all containers scheduled for disposal that day.

NOTE: The contractor must be able to adapt to TYADs ever changing workload. The COR will occasionally request that front-loading cans be moved from one location to another depending on request from shops for shifts in workloads, construction projects, special events, etc. The contractor will have 48 hours to meet the COR requests.

Schedule and Points of Collection. The contractor shall provide necessary services for refuse collection and disposal as described herein.

Route and Collection Schedules.

Upon award, the contractor will establish vehicle routes and collection schedules and submit these routes and schedules to the COR for approval. Once the routes and collection schedules have been approved, the contractor shall be required to follow these approved routes and schedules unless otherwise directed by the COR. In the event that the contractor wants to change

the approved vehicle routes and/or collection schedules, such changes must be approved in writing by the COR prior to any changes.

Upon arrival the contractor will notify the COR so the initial vehicle weight can be recorded, the contractor will then begin the daily collection service. Once the contractor is done with that day's pickups they will then notify the COR. The contractor is required to provide a monthly tabulation of all solid waste disposed of broken down per day for daily refuse removal and for each roll off emptied at the end of each month. The COR can provide a spreadsheet template for this record keeping.

The collection schedule shall be established so that operations will not start earlier than 5:30 AM but not later than 10:30 AM. The contractor must be done with all the necessary collections no later than 3:00 PM, Monday through Friday. Collection operations outside these hours will require prior approval of the COR. Where pickup is required twice a week, containers shall be picked up either Mondays and Thursdays or Tuesdays and Fridays. Where pickup is required three times a week, containers shall be picked up Mondays, Wednesdays and Fridays. Where pickup is once a week, containers shall be picked up on Wednesday.

The frequency of collections will be as indicated on Tabulation of Solid Waste Collection Sites as listed in this statement of work.

The contractor shall execute the collection and disposal operations to result in minimum delay or divergence from the schedule.

Points of Collection. Points of collection are as indicated and numbered on the attached Solid Waste Collection Site listed.

NOTE: Points of collection may be changed from time to time as required by the needs of the government. The COR reserves the right to direct the contractor to relocate any or all refuse collection points, residential waste collection points and/or all roll offs.

Bulky Item Collection Requirements. The contractor shall furnish an adequate number of roll-off containers at the start of performance of this contract as requested by the COR for use in bulky item collections. Prior to the start of the contract, the COR will coordinate with the contractor on locations. These containers are usually open-top and approximately 10- 40 cubic yards in size. Bulk Collection will be required 60 times per year.

Coatings/Paint Waste Collections. Coatings/paint waste shall be collected by using contractor-furnished containers and contractor-owned collection trucks. A leak-proof 40 cubic yard roll-off must be provided for the collection of this waste or the contractor must place a liner in the container before use. Collection of paint waste will be required fifteen (15) times per year.

Garnet Sludge. Garnet sludge collection shall be collected using contractor-furnished containers and contractor-owned collection trucks. A leak-proof 10 cubic yard roll-off for the collection of this waste must be provided for the collection of this waste or the contractor must place a liner in the container before use. Garnet sludge will be picked up 6 times per year.

Sewage Sludge. Sewage sludge collection shall be collected using contractor-furnished containers and contractor-owned collection trucks. A leak-proof 20 cubic yard roll-off for the collection of this waste must be provided for the collection of this waste or the contractor must place a liner in the container before use. Collection is usually required between April – October and 15 pickups will be required.

Infectious Waste. The contractor shall provide properly labeled containers and requisite disposable red bags on an as required basis. Upon award, the contractor must provide a pickup schedule within seven days. The contractor shall arrange a pickup schedule that leaves pick up a minimum of 13 pickups per year or within twenty-four (24) hours after notification by the COR. The contractor shall be responsible for the proper completion and disposition of waste manifest(s) in accordance with all applicable federal, state and municipal laws, codes and regulations including changes thereto. The contractor shall be responsible for obtaining all necessary licenses and permits and shall furnish copies of such to the KO as they become available. Removal, transportation and disposal of the waste shall be the responsibility of the contractor. The contractor shall dispose of the waste at a disposal facility which has all the valid and current licenses/permits required by federal, state or local agencies. The contractor must be able to provide validation of disposal upon the COR request.

NOTE: The contractor shall furnish an empty replacement roll-off container each time a filled container is removed from TYAD unless otherwise requested. The COR will notify the contractor when a container needs to be switched out. The contractor then has 24 hours to replace the filled container with an empty one.

Positioning of Containers. The contractor shall position all containers at collection stations to best aid the use in disposing of solid wastes. The contractor shall also position containers so as to minimize interference with adjacent parking areas, sidewalks, roadways, etc. The positioning of the containers must meet the approval of the COR. The contractor shall not combine or relocate collection stations, revise or in any way modify route diagrams without prior approval of the COR.

When more than one container is positioned at one collection station, containers shall be placed as close together as feasible for user convenience and organized appearance, subject to the approval of the COR.

The contractor shall return non-disposable containers to their proper station in an upright position with the lids securely in place and the doors closed.

Unconfined Excess Refuse. The contractor must collect any refuse within five feet of each collection site. Refuse placed at the collection site in sacks, cartons, bags, cans, etc. or loose shall be removed by the contractor in the same manner and at the same time as if it were placed in the regularly provided containers.

The contractor shall not pick up any empty 55-gallon drums that may be placed in the vicinity of

any of the collection sites. Such drums may or may not have contained hazardous materials. If the contractor sees a 55-gallon drum in any of the collection containers they are to notify the COR immediately.

Blocked Containers. Any container that needs to be emptied that is blocked by vehicles, equipment, snow, etc. shall be reported to the COR immediately. The COR will attempt to get the car, equipment, etc. moved. The contractor shall return to check the blocked container for pickup at least one more time that day.

Expedited Removal of Non-Hazardous Sludge – Annually: The purpose of this annual expedited removal is to accommodate collection of dewatered sludge as it is processed by a sludge dewatering unit. The contractor must have the ability to send up to two roll offs into the sewage treatment plant per day for up to five consecutive days as demanded by the treatment plant.

Regulations. The site of the contract work is on federal property and all rules and regulations issued by the Commander of TYAD covering topics such as but not limited to, fire, safety, sanitation, admission to the installation and conduct of operations shall be observed by the contractor and his employees.

In order to provide safety controls for protection to the life and health of employees and other persons; for the prevention of damage to property, materials, supplies, and equipment; and to avoid work interruptions in the performance of this contract the contractor shall conform to all rules and requirements prescribed in all applicable Occupational Safety and Health Administration (OSHA) regulations.

The contractor shall take all steps and precautions to prevent accidents and to preserve the life and health of contractor and government personnel performing or in any way associated with or resulting from the performance of this contract.

Noise Prevention. All of the contractor's equipment shall be equipped with properly maintained noise limiting devices.

Backup Warning Devices. All contractor vehicles used in the performance of this contract shall be equipped with audible and flashing backup warning devices.

#### SAFETY PROVISION FOR SERVICE CONTRACTS PERFORMED AT TYAD.

Safety: Incidents or Accidents on the installation: Any incident or accident resulting in any (minor or major) damage or injury, whether or not it involves the contractor's policy or employees, or it involves government property or employees, shall immediately be reported to the COR. The contractor and any other persons involved shall remain at the site of the incident until the COR arrives to assess and to notify the proper authorities. Failure to report any incident or accident resulting in any damage or injury is not acceptable.

DoD, DA, OSHA and local TYAD rules and regulations shall govern contractors, sub-contractors, suppliers and their employees. Contractors and subcontractors shall comply with

TYAD Safety Regulation 385 as applicable. The TYAD Safety Regulation 385 Safety Manual may be made available by contacting the TYAD Safety Division (570) 615-7027.

Contractors shall comply with Title 29 Code of Federal Regulations-1910 (OSHA General Industry Standards), Title 29 Code of Federal Regulations-1926 (Construction Industry Standards) and National Fire Protection Association Codes as applicable.

All contractor and subcontractor employees on site at TYAD shall be required to view a 15-minute Safety film upon TYAD entry and prior to performance of any on-site work. Contractors shall also comply with any and all Safety requirements as stated in the specific statement of work or technical specifications applicable to the contract/order.

#### DISPOSAL.

The contractor shall comply with PA Act 101, PA Act 90, and the Monroe County Solid Waste Management Plan. The contractor shall be licensed as required by PA Act 90 and the Monroe County Solid Waste Management Ordinance and shall submit semi-annual and annual reports (on the proper forms) to the Monroe County Municipal Waste Management Authority.

The municipal solid waste and generic residual waste generated at TYAD shall be collected on the same front loading refuse truck and treated as both municipal solid waste and generic residual waste. The contractor shall dispose of all municipal solid waste and generic residual waste under this contract at a Pennsylvania Department of Environmental Protection (PADEP) approved and Monroe County Municipal Waste Management Authority authorized landfill.

Disposal of all solid waste collected under this contract shall be in strict accordance with federal, state, county and local regulations as applicable. The contractor shall obtain such permits, licenses or other authorization as may be required at no additional cost to the government. The disposal site (sanitary landfill) must have valid permits issued by the appropriate government agency for each type of waste being disposed.

All coatings/paint waste, grease sludge, and sewage sludge shall be disposed of at a PADEP approved and Monroe County Municipal Waste Management Authority authorized landfill. The Keystone Sanitary Landfill has approved form U's for these waste streams and currently receives this waste.

The contractor shall be solely responsible for using an approved disposal facility. In the event of revocation of the landfill permit or landfill enclosure, the contractor remains responsible for the removal and approved disposal of solid waste from TYAD without deviations from the provisions contained herein, unless prior written approval is granted by the KO. The contractor may identify a secondary disposal facility if so desired. However, the secondary disposal facility must be a Monroe County Municipal Waste Management Plan approved site. Also, the contractor must give adequate notice and also coordinate this with the COR so the proper forms can be filled out and approved with the landfill.

The contractor shall provide trucks or similar hauling equipment designed to prevent blowing,

spilling and otherwise scattering refuse, solid waste, trash, garbage, etc., on government property, on and along roads, on streets and on any surrounding and adjacent areas en route to the disposal site. All roll-offs that are taken off post are required to be covered before leaving TYAD.

NOTE: TYAD has cradle-to-grave responsibility for the disposal of all solid waste generated on-site. Generic residual waste must be disposed of at a PADEP approved landfill. Transfer facilities generally do not send solid waste received to the same facility each day. Therefore, TYAD will not approve a proposal to send municipal solid waste and/or generic residual waste to a transfer facility, even if the transfer facility is a Monroe County Municipal Waste Management Plan approved site.

Salvageable Materials. The contractor shall not salvage any material unless specifically designated and approved by the COR. If the contractor discovers a questionable item or material which they believe has a salvageable value or for which there is doubt as to whether the item(s) were intended for refuse pickup or disposal, the COR shall be notified immediately.

Hazardous Materials. The contractor shall not collect or dispose of any hazardous materials. If the contractor or his employees discover material, which they believe may be hazardous, the COR shall be notified immediately. In the event the COR is not available, the contractor shall notify the TYAD EMD, who will then contact the appropriate personnel to provide guidance.

Military Materials. The contractor shall not collect or dispose of any military equipment. Should a load include military equipment (e.g., army-green or desert-beige painted items), the contractor shall immediately notify the COR. Per the decision of the COR, either TYAD personnel shall immediately retrieve the item(s) from the contractor's facility, or the contractor shall return the material during their next trip to TYAD. In the event the COR is not available, the contractor shall notify the TYAD Security Office (phone number to be provided at time of award), who will then contact the appropriate personnel to provide guidance.

Retention of Discarded Items. Any type of refuse collected by the contractor under this contract may be retained by the contractor for disposition off-post if approved by the KO and provided the requirements of this contract are fulfilled. If any item(s) is requested to be returned, the contractor shall do so while the item(s) is in his possession. The government reserves the right to inspect the landfill site, recycling center or other sites that might contain the refuse collected at TYAD, and recover any material originating from TYAD. If the landfill or recycling center is not owned and/or operated by the contractor, the contractor shall make provisions with the landfill or recycling center owner and/or operator for government inspection and recovery privileges.



Solid Waste Collection Sites

| Site# | Container<br>Size (cu.yd.) | Type of<br>Solid Waste | Frequency of<br>Pickup |
|-------|----------------------------|------------------------|------------------------|
| 1     | 8                          | Refuse                 | 2W                     |
| 2     | 8                          | Refuse                 | 2W                     |
| 3     | 8                          | Refuse                 | 2W                     |
| 4     | 8                          | Refuse                 | 2W                     |
| 5     | 8                          | Refuse                 | 2W                     |
| 6     | 8                          | Refuse                 | 2W                     |
| 7     | 8                          | Refuse                 | 2W                     |
| 8     | 8                          | Refuse                 | 2W                     |
| 9     | 8                          | Refuse                 | 2W                     |
| 10    | 8                          | Refuse                 | 2W                     |
| 11    | 8                          | Refuse                 | 2W                     |
| 12    | 8                          | Refuse                 | 2W                     |
| 13    | 8                          | Refuse                 | 2W                     |
| 14    | 8                          | Refuse                 | 2W                     |
| 15    | 8                          | Refuse                 | 2W                     |
| 16    | 8                          | Refuse                 | 2W                     |
| 17    | 8                          | Refuse                 | 2W                     |
| 18    | 8                          | Refuse                 | 2W                     |
| 19    | 8                          | Refuse                 | 2W                     |
| 20    | 8                          | Refuse                 | 2W                     |
| 21    | 8                          | Refuse                 | 2W                     |

|    |    |                    |    |
|----|----|--------------------|----|
| 22 | 8  | Refuse             | 2W |
| 23 | 8  | Refuse             | 2W |
| 24 | 8  | Refuse             | 2W |
| 25 | 40 | Coatings<br>/Paint | AS |
| 26 | 8  | Refuse             | 2W |
| 27 | 8  | Sawdust            | 1W |
| 28 | 8  | Refuse             | 2W |
| 29 | 40 | Bulky<br>Items     | AS |
| 30 | 40 | Bulky<br>Items     | AS |
| 31 | 8  | Refuse             | 2W |
| 32 | 8  | Refuse             | 2W |
| 33 | 8  | Refuse             | AS |
| 34 | 20 | Sludge             | AS |
| 35 | 8  | Refuse             | 2W |
| 36 | 8  | Refuse             | 2W |
| 37 | 8  | Refuse             | 2W |
| 38 | 3  | Sawdust            | 1W |
| 39 | 3  | Sawdust            | 1W |
| 40 | 8  | Refuse             | 2W |
| 41 | 8  | Refuse             | 2W |
| 42 | 8  | Refuse             | 2W |
| 43 | 8  | Refuse             | 2W |

|    |     |                  |    |
|----|-----|------------------|----|
| 44 | 8   | Refuse           | 2W |
| 45 | 8   | Refuse           | 2W |
| 46 | 8   | Refuse           | 2W |
| 47 | 8   | Refuse           | 2W |
| 48 | 8   | Refuse           | 2W |
| 49 | 8   | Refuse           | 2W |
| 50 | N/A | Medical<br>Waste | AS |
| 51 | 8   | Refuse           | 2W |
| 52 | 8   | Refuse           | 2W |
| 53 | 8   | Refuse           | 2W |
| 54 | 8   | Refuse           | 2W |
| 55 | 8   | Refuse           | 2W |
| 56 | 8   | Refuse           | 2W |
| 57 | 8   | Refuse           | 2W |
| 58 | 8   | Refuse           | 2W |
| 59 | 8   | Refuse           | 2W |
| 60 | 8   | Refuse           | 2W |
| 61 | 8   | Refuse           | 2W |
| 62 | 8   | Refuse           | 2W |
| 63 | 8   | Refuse           | 2W |
| 64 | 8   | Refuse           | 2W |
| 65 | 8   | Refuse           | 2W |
| 66 | 8   | Refuse           | 2W |

|    |   |        |    |
|----|---|--------|----|
| 67 | 8 | Refuse | 2W |
| 68 | 8 | Refuse | 2W |
| 69 | 8 | Refuse | 2W |
| 70 | 8 | Refuse | 2W |
| 71 | 8 | Refuse | 2W |
| 72 | 8 | Refuse | 2W |
| 73 | 8 | Refuse | 2W |
| 74 | 8 | Refuse | 2W |
| 75 | 8 | Refuse | 2W |
| 76 | 8 | Refuse | 2W |
| 77 | 8 | Refuse | 2W |
| 78 | 8 | Refuse | 2W |
| 79 | 8 | Refuse | 2W |
| 80 | 8 | Refuse | 2W |
| 81 | 8 | Refuse | 2W |
| 82 | 8 | Refuse | 2W |
| 83 | 8 | Refuse | 2W |
| 84 | 8 | Refuse | 2W |
| 85 | 8 | Refuse | 2W |
| 86 | 8 | Refuse | 2W |

**ABBREVIATIONS:**

AS- As Scheduled

1W – Once a week (Wednesday)

2W- Twice a week (Mon & Thurs, or Tues & Fri)

Inclement Weather Schedule. The contractor shall collect refuse during periods of inclement weather unless otherwise approved by the COR in the case of extreme weather conditions. The COR will approve the delay in collection during periods of extreme weather conditions on a day- by-day basis. When exceptions are granted, the contractor shall accomplish all collections for each day missed in order to "make up" all missed collections within 24 hours after re- commencement of services. In the event the following day is Saturday, such make up will be performed on Monday. If all "make up" collections cannot be made in 24 hours, the Contractor shall submit a revised schedule to the COR for approval. Rescheduling to provide "make up" collections shall not be the basis for a claim by the contractor for additional compensation.

Holidays. If the daily collection schedule falls on a legal holiday, the contractor shall plan additional pickup time for the next work day. Upon award, the contractor shall notify the COR of their holiday schedule if it differs from the government's schedule. Any holiday rescheduling shall be at no additional cost to the government and under no circumstances will the collection interval exceed the three-day requirement. Refuse collection will not be made on the following holidays due to TYAD being closed.

New Year's Day  
Martin Luther King Day  
Presidents Day  
Memorial Day  
Juneteenth  
Independence Day  
Labor Day  
Columbus Day  
Veterans Day  
Thanksgiving Day  
Christmas Day

January 1  
2nd Monday in January  
3rd Monday in February  
Last Monday in May  
June 19  
July 4  
1st Monday in September  
2nd Monday in October  
November 11  
4th Thursday in November  
December 25

#### INSPECTION AND ACCEPTANCE.

The government will inspect the contractor's performance under the contract in accordance with the terms of the contract clauses and the standards and procedures specified in the QASP. Final inspection and acceptance will be performed at the site of performance at Tobyhanna Army Depot by the COR.

The KO will conduct such inspection and surveillance of the contractor's performance under the contract as he determines appropriate and necessary. The government will monitor the contractor's performance by physical inspection, review of reports/documentation and customer complaints.

#### PAYMENT FOR ACCEPTED SERVICE.

The contractor will be paid a firm fixed price on a monthly basis. All payments will be made

electronically within Net 30 Days of acceptance of invoice in WAWF by the COR.

Submittals: The contractor shall provide the following submittals to the COR via the Wide Area Work Flow (WAWF) electronic invoicing system: monthly invoice for services performed under this contract.

#### ACCESS TO RECORDS, DATA AND FACILITIES.

The contractor shall permit the KO or his authorized representatives to have access at any reasonable time to all records, data and facilities used in contract performance.

END WORK STATEMENT

### **SERVICE or EQUIPMENT INSTALLATION CONTRACTOR SAFETY STANDARDS FOR TYAD**

Below are some "installation specific" safety standards which contractors are required to adhere to while performing any work on Tobyhanna Army Depot. It is the contractor's responsibility to always incorporate these particular requirements into their daily operations while under contract and to institute these specifics into their overall site safety controls. These do not substitute or deflect in any way the requirement to institute and adhere to all OSHA 29 CFR 1910 & 1926 and USACE EM385-1 safety standards, as well as all applicable contractual Federal Acquisition Regulations while performing the work under this contract on Tobyhanna Army Depot.

It is the responsibility of the contractor to enforce the below requirements as well as all current revisions of the above referenced standards. Failure to enforce safety requirements on the depot can result in immediate stop works, safety stand down orders and even complete termination of the contract.

## **S1.0 THE CONTRACTOR IS SOLELY RESPONSIBLE AND LIABLE FOR JOB- SITE SAFETY**

1. Review of the project plans and other documents by any government appointed official does not constitute an acceptance of Federal responsibility or liability for the adequacy of the safety measures identified for the job or for the Contractor's compliance with all applicable safety rules and regulations.
2. The Contractor remains solely responsible and liable for job-site safety at all times during the term of the contract. No outside personnel (other than ET, COR, TYAD Safety, or other government appointed contract personnel) are allowed onto the job site at any time during contract without prior permissions and/or escort by the ET, COR or KO.
3. Tobyhanna Army depot has restrictions on the use of fossil fuels in all buildings. When it is determined that electric or other alternatively fueled vehicles are insufficient or unavailable for movement of material within the buildings on the installation, fossil-fueled vehicles can be used only when all alternatives of accepted electric material movement equipment have been considered, and the last option is use of a fossil fuel vehicle or project failure. This includes any situations where safety of employees and equipment may be jeopardized. Convenience will never be an acceptable justification to utilize fossil-fueled vehicles. The Government Designated Representative (GDR) will notify the appropriate supervisor(s) or leader(s) in the area where the need to utilize a fossil fuel vehicle is required. The supervisor / leader will take the necessary steps to notify the employees in the work area of the option to leave the area during the material movement process. The GDR and Contractor will also document all actions the Contractor took to utilize electric or other alternatively fueled vehicles. The documentation will specifically state why electric or alternatively fueled vehicles are insufficient and all mitigation efforts used to minimize the effects of fossil-fueled vehicles to include information as to any appropriate scrubbers that can be utilized along with any ventilation or exhaust systems that can be used to externally vented to the outside of the facility. The documentation must be submitted to the TYAD Safety office for approval prior to any equipment being used. A final copy of the Approved documentation will be provided to the TYAD Safety Division.
4. All direct construction supervision, including subcontractors, must as a minimum, complete an OSHA 30-hour safety course for construction. These certificates must be submitted as part of the site safety plan BEFORE construction activities start.
5. **RED CARD PROGRAM** - Tobyhanna Army Depot utilizes a program to allow employees to stop an action which is considered unsafe. Employees carry small red cards that can be thrown down when employee sees any action they consider unsafe. Work ceases until TYAD management can decide if it is safe or not. Contractors are required to comply with this program. If a TYAD employee presents the red card to the contractor, the contractor must stop working until the COR and Safety Office can determine if there is a safety hazard or not.

6. All contractor personnel, to include subcontractors, vendors, suppliers, or visitors, when performing any type of work activity, or gaining access through an occupied area or shop - must have all applicable PPE that is required for the area to include, but not limited to, hardhats, safety glasses, hearing protection, and respirator protection. Notify both COR & Area Supervision, for access approval and prior to any work activities being performed.

## S13.0 IF AN INCIDENT HAPPENS

### 1. Any serious injury or medical emergency:

- Immediately call emergency responders
- Dial 911 and give accurate location and nature of emergency. Make sure to tell the operator that you are calling from Tobyhanna Army Depot.
- Send someone to the nearest exit to assist responders.
- Treat victims to the best of your ability.
- Notify COR / call work order desk at 57-615-7305 if there is any blood or body fluids that must be cleaned up.

### 2. In the event of the smell of natural gas:

- Call dial 911 and give accurate location and nature of emergency. Make sure to tell the operator that you are calling from Tobyhanna Army Depot.
- Have all personnel evacuate the area if the smell is significant.
- Upon arrival of fire personnel, provide information as to specific equipment and exact location of potential leak.

### 3. In the case of a fire:

- If the fire is small, use a fire extinguisher and call 911.
- Otherwise, dial 911 and pull the fire alarm.
- Evacuate the building.

**IF ANY CONFLICT BETWEEN STANDARDS, THE STRICTER OF THE TWO SHALL APPLY. IF UNSURE CONTACT THE COR / ET VIA PROPER RFI PROTOCOLS FOR VERIFICATION THROUGH THE TYAD SAFETY OFFICE.**

**The information below is mandatory security requirements that must be incorporated into all Statements of Work and Performance Work Statements.**

All Tobyhanna Army Depot (TYAD) contracts and other acquisition-related documents must ensure privacy and security controls follow this information, and that contractors, subcontractors, and service providers protect Privacy Act information in the same way the organization adhering to the Federal Acquisition Regulations (FAR) Privacy Act provisions (Subparts 24.1 and 24.2) and include the specified contract clauses (Parts



52.224-1 and 52.224-2), as appropriate, to ensure that personal information is protected as mandated.

**Force Protection Condition (FPCON)** Should the Force Protection Condition (FPCON) at the installation change, the Government may require changes in contractor security matters and/or processes.

If based on the requirements of this contract, contractor employees may be designated as mission essential. Mission-essential contractor employees are required to report for duty and remain on duty during declared emergencies and/or elevated FPCON levels unless otherwise directed by the Contracting Officer (KO) via the appropriate Contracting Officer's Representative (COR).

Unscheduled gate closures by Law Enforcement may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays.

Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee's installation driving privileges.

The contractor's employees shall become familiar with and obey the regulations of the installation, including law enforcement, fire, traffic, safety and security (protecting National security) regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times. The contractor shall ensure compliance with all regulations and orders of the installation which may affect performance.

*(If Required)* The contractor shall provide support during contingencies, exercises, heightened operations, and adverse weather or security closures in the accomplishment of performance requirements. From time to time, the Base Commander may decide to close all or part of a base in response to an unforeseen emergency or similar occurrence. Such emergencies include adverse weather such as snow, or ice, "an act of God," such as tornado or earthquake, or a base disaster such as a gas leak or fire.

**Emergency Communications and Services.** If assigned to TYAD for (7) seven days or longer, contractors and subcontractor employees will enroll in the ALERT! Mass Warning Notification System (MWNS). Common Access Card (CAC) is required to register for ALERT!. If a CAC has not been deemed necessary for the contractor or subcontractor, the COR will provide the necessary information to TYADs Antiterrorism Officer or TYADs Emergency Manager in the Security Operations Branch for manual input into the ALERT! System.

**ALERT! MWNS is NOT optional - it is a Headquarters Department of the Army (HQDA) requirement to be a registered user.**

Due to the life-safety implications of the information being relayed and the requirement to provide immediate alerts and warnings, personnel assigned to TYAD must ensure that their personal contact information, including after-duty hours contact information, as appropriate (e.g., personal cellular phone numbers or landline phone numbers), e-mail addresses, home address, etc., are entered into the system and regularly updated or verified every 90 days to remain current and accurate.

In the event of a life-threatening emergency or natural disaster, COR will account for assigned contractors. COR will send personnel accountability report to Emergency Operations Center (EOC).

Base closure announcements will be disseminated via ALERT! MWNS.

**Antiterrorism (AT) Level I Training.** In accordance with AR 525-13, all contractor and subcontractor employees requiring access to Army installations, facilities, or controlled access areas shall complete AT Level I awareness training annually. This training must be completed prior to being granted installation access and beginning work. The contractor is responsible for ensuring this requirement is met and for providing certificates of completion for each employee to the COR upon request. The web-based training is available at <https://jko.jten.mil> (Course: JS-US007).

AT Level I and iWATCH training is not required to be in person. While in-person training is an option, the most common and widely accepted method is web-based. Army regulations explicitly provide multiple ways to meet the training requirement to ensure flexibility for all personnel, regardless of their location or access to a classroom setting.

**iWATCH Army Training.** This training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 30 calendar days after contract award. Contractors and all associated sub-contractors will be briefed by the TYAD Antiterrorism/Force Protection officer. It is recommended this training be conducted as part of an initial entry briefing or unit/organization newcomer's briefings. Send training requests to TYADs Antiterrorism Officer. Contractor employee training will be documented on a local form.

**Access and General Protection/Security Policy and Procedures.** Contractor and all associated sub-contractor employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by TYAD Law Enforcement. Contractor workforce must comply with all personal identity verification requirements as directed by DoD, HQDA, and/or local policy.

Contractor and all associated sub-contractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by the government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

A background check and approval from TYAD Law Enforcement is required for all contractor and subcontractor personnel prior to on-site access at TYAD. All persons seeking entrance to TYAD shall submit to and comply with all security standards and requirements in force at the time such persons are seeking entry. All contractors, regardless of resident status or citizenship, will be subject to vehicle search and intense in-processing by TYAD security personnel prior to being granted access to TYAD. This

security screening process may be time consuming, and access may be delayed or denied. The contractor shall ensure the required government access request form is completed. COR will provide specifics to the contractor after award and at least ten days prior to the expected visit date for completion. All the required fields on the form shall be accurate and complete. This requirement is inclusive of on-site supervisory or managerial personnel and sub-contractor personnel that the contractor anticipates will be performing work or visiting on-site. This security screening does not relieve the contractor of any responsibilities to conduct thorough pre-employment background checks and drug screening. Contractor workers will **not** be granted access to the work site until security screening is completed and access is approved. Any contractor personnel on-site who fail screening will not be permitted further access to TYAD. Submit the completed local form(s) to the COR. Ensure contracts include the provisions that check for the possibility of and prevent undocumented workers for inclusion in contracted work related to Army missions.

The company will ensure that its employees entering Army controlled installations or facilities have obtained access badges and passes in accordance with facility regulations and that these badges and passes are obtained in advance so as not to delay the accomplishment of contracted services.

**Pre-Bid Site Visit Controls:** Any pre-bid site visits held before the contract award will be conducted under strict security controls. These protocols—including mandatory pre-registration for baseline vetting and constant escorting—apply to all potential bidders, regardless of any previous work history with TYAD or current installation access. During this public solicitation phase, a contractor's prior access or familiarity with the installation does not grant them a "need-to-know" for a new requirement. All bidders will be treated as external entities, and the site visit is strictly for a visual inspection of physical conditions only.

**Post-Award Information Release:** Conversely, all project specifics—including exact locations, detailed plans, and mission context—can and must be provided to the contractor only after the contract is awarded and their personnel have completed all mandatory security training (AT, OPSEC, CUI). At this stage, the contractor has an established "lawful government purpose," and the controlled release of detailed information is appropriate and necessary for the performance of the contract.

**Common Access Card (CAC):** *[If applicable.]* Before CAC issuance, the contractor employee requires, at a minimum, a favorably adjudicated National Agency Check with Inquiries (NACI) or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if duties involve one of the following: (1) Both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) Remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) Physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled NACI at the Office of Personnel Management.

Contractors shall be identified with Government issued identification card (e.g., Common Access Card (CAC) or unit specified identification card). When required, contractor personnel shall comply with local security policies to wear their identification card in a standardized manner, clearly visible attached to the torso of the exterior garment above the belt and below the shoulders except when in use (i.e., inserted in a computer CAC reader) or when in controlled areas requiring other credentials as the primary method of identification. To access any Government base and certain facilities, the contractor shall present required identification card upon demand. Upon exit from Government facilities, the contractor shall conceal their credentials (CAC or other credentials) from plain view. The contractor and Contractor Security Manager/Officer shall coordinate with the COR for Government credential issues.

For contractors that do not require CAC, but require access to a DoD facility or installation: Contractor and all associated subcontractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (Army Directive 2014-05/AR 190-13); applicable installation, facility and area commander installation and facility access and local security policies and procedures (provided by Government representative); or, at OCONUS locations, in accordance with status-of-forces agreements and other theater regulations.

**Collection of Badges:** The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

1. When no longer needed for contract performance
2. Upon completion of the Contractor employee's employment
3. Upon contract completion or termination

The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements. The Contractor shall insert the substance of this clause, including this paragraph, in all subcontracts when the subcontractor's employees are required to have routine physical access to a federally controlled facility and/or routine access to a federally controlled information system. It shall be the responsibility of the prime contractor to return such identification to the issuing agency in accordance with the terms set forth in of this section, unless otherwise approved in writing by the Contracting Officer. The company will return all issued U.S. Government Common Access Cards, installation badges, and/or access passes to the COR when the contract is completed or when a contractor employee no longer requires access to the installation or facility. Contractor personnel will obtain a vehicle pass for access to the military installation and Common Access Cards (CAC) for computer access, if applicable.

**Threat Awareness and Reporting Program (TARP).** *[If applicable.]* For all contractors with security clearances, per AR 381-12, TARP contractor employees must receive initial and annual TARP training by a CI Agent or other trainer as specified.

**Insider Threat Program.** The contractor will establish and maintain an insider threat program to gather, integrate, and report relevant and available information indicative of a potential or actual insider threat, consistent with E.O. 13587 and Presidential

Memorandum "National Insider Threat Policy and Minimum Standards for Executive Branch Insider Threat Programs."

**Operational Security (OPSEC).** OPSEC is not a one-time checklist, it is a dynamic, ongoing process embedded in every phase of planning, execution, and daily operations. It requires continuous critical thinking and vigilance from everyone who interacts with government information or operates on a government installation. This includes military personnel, Department of Defense civilians, contractors, subcontractors, and family members. OPSEC is not just a policy, it's a mindset. Its success depends on consistent awareness and execution by every member of the TYAD community.

At TYAD, all observations, communications, and experiences must be protected and must not be shared with anyone lacking a lawful government purpose or a validated business need-to-know. This disciplined approach ensures that emerging threats, evolving vulnerabilities, and shifting mission parameters are constantly reassessed and addressed to safeguard critical information.

OPSEC applies across the full spectrum of DoD missions, functions, programs, and activities under this contract. Practicing OPSEC daily is a requirement that is essential to mission success and the protection of national security assets.

Failure to properly safeguard sensitive or classified information—whether through negligence, willful misconduct, or ignorance—may result in administrative, disciplinary, contractual, or criminal consequences.

**Applicability and Management of the Contractor OPSEC Plan** The requirement for an Operations Security (OPSEC) Plan or a Standing Operating Procedure (SOP) is based on the contractor's access to and handling of Critical Information and/or Controlled Unclassified Information (CUI), regardless of where that information resides. It is essential to distinguish between Information Security (INFOSEC), which protects data "at rest" within a system and OPSEC, which protects data "in use" by governing the procedures and actions of personnel.

When contractor personnel access or handle CUI—such as building floor plans, technical manuals, or operational schedules—they are required to have an approved OPSEC Plan/SOP. This plan is the formal, documented agreement that outlines how the contractor will protect the government's sensitive information. Even when CUI is handled exclusively on Government Furnished Equipment (GFE), the contractor remains responsible for the human factor." The OPSEC Plan transfers the responsibility for protecting this information from the Government to the contractor by legally obligating them to establish internal procedures for everything from secure physical storage and controlled discussions to the proper destruction of materials. Without this plan, the Government retains all risk for how a contractor safeguards its data.

The management and approval of the contractor's OPSEC Plan is a shared responsibility, with defined roles at each stage. Per government acquisition and security policy, it is the Contracting Officer's Representative (COR) who is ultimately responsible for the initial identification and final enforcement of this requirement. The process is as follows: **The COR (designated technical representative) identifies the need for an OPSEC Plan based on the work described and writes the requirement into the Statement of Work (SOW). After contract award, the COR enforces this by ensuring the contractor submits the plan on time.** The Contracting Officer

(KO) ensures the requirement is legally binding in the final contract and is the sole authority to take contractual action for non-compliance. Finally, the Government OPSEC Officer, as the technical expert, is responsible for reviewing the submitted plan against AR 530-1 and providing the formal approval or rejection back to the COR.

**OPSEC Training Requirements.** In accordance with AR 530-1 (4-2-a), all contractors and subcontractors shall complete OPSEC Level I certification training (Initial and Continual – detailed below).

The Contracting Officer's Representative (COR) serves as the oversight authority: the COR verifies contractual compliance by collecting and reviewing certificates, ensuring they're submitted within the required timeframe – first 30 days of assignment.

According to AR 530-1 (para 4-2) and DoDM 5205.02, there is no “grace period” or minimum number of days on-site before OPSEC Level I Initial and Continual training becomes mandatory—any contractor, subcontractor, or support-service provider who requires access to TYAD information, systems, or facilities must complete both parts of their OPSEC Level I training.

OPSEC Level I training is comprised of two parts (Initial and Continual):

1. OPSEC Level I **Initial** training

- To be completed within first 30 days of assignment to TYAD and annually thereafter – preferably before the job starts
- Provides specific information about TYADs OPSEC program
- Contractors and subcontractors must set up an appointment with TYADs OPSEC Officer for Initial training. **The COR will provide the necessary point of contact to schedule the training.**
- Conducted by TYAD's OPSEC officer or alternate – training can be in person or via MS Teams (30 minutes) and is tracked by a TYADs OPSEC Officer via a local training form

2. OPSEC Level I **Continual** training:

- Commonly referred to as annual OPSEC training
- To be completed within 30 days of assignment to TYAD and annually thereafter – preferably before the job starts
- Provides general information about OPSEC and reemphasizes sound OPSEC practices throughout the contract period
- Title of the training is: “OPSEC Awareness for Military Members, DoD Employees and Contractors” and is available online - <https://securityawareness.dcsa.mil/opsec/index.htm>
- Certificates of completion must go to the COR

**OPSEC Measures to Protect Critical Information.** This section is critical because it moves beyond a simple, vague requirement to “practice OPSEC” and provides the contractor with specific, actionable, and enforceable rules of behavior.

All contractors and subcontractors shall implement the following mandatory OPSEC measures during the entire period of performance to protect critical and sensitive unclassified information:

1. **Training and Compliance:** Complete all mandatory OPSEC training as specified in this contract and actively apply all TYAD OPSEC measures in daily, contract-related operations.
2. **Secure Communications:** Avoid discussing government operations in public spaces or over unprotected communications (e.g., personal cell phones). Transmit Controlled Unclassified Information (CUI) only through authorized, encrypted channels as directed in the SOW/PWS = DoD Safe Access File Exchange (SAFE) is the accredited method for sending files that contain CUI, Personally Identifiable Information (PII), or other sensitive data that should not be transmitted over unencrypted, commercial email channels. The files are encrypted during the transfer process.
3. **Public Release and Social Media Prohibition:** Do not disclose or post any images, data, or operational details (e.g., maps, pictures, schedules, equipment, tactics) to any unofficial media, including personal or corporate social media platforms. All information or materials intended for public release require a documented OPSEC review by a TYAD certified OPSEC Level II reviewer. Coordinate all press releases through the COR and TYADs Public Affairs Office.
4. **Reporting Requirements:** Immediately report any attempts by unauthorized third parties to solicit sensitive information to the TYAD Security Operations Branch, the contract POC, and the contractor's Facility Security Officer (FSO).
5. **Credential Control:** Conceal or remove all government-issued badges and identification when off the installation. Do not duplicate, loan, or leave credentials unattended (CACs, badges, and/or parking passes or placards). Report any lost or stolen passes/badges/credentials to TYAD Law Enforcement Branch. The COR will provide all POC contact information.
6. **Protection of Sensitive Data:** Mark and protect internal company data related to this contract (e.g., schedules, deliverables, vulnerability reports) as CUI. All government-provided information, such as drawings and technical data, must be protected in accordance with DoD, Army guidance and guidance within contract package documents.
7. **Information Disposal:** At contract completion or upon Government request, return all government information to the COR or destroy it in accordance with approved TYAD procedures for handling CUI.

**Photography or Videography.** Contractors and subcontractors who will require photography or videography at TYAD must notify their COR at least fourteen business days in advance and complete OPSEC Level I Initial training. The COR will provide contractors with the contact information for points of contact within the security branch after award. All individuals must follow TYAD policy regarding photography and the use of personal electronic devices.

All photos and videos must then undergo an OPSEC Review—per AR 530-1 Chapter 4—to evaluate them against TYAD's Critical Information List and identify any vulnerabilities. That review must be fully documented and signed off by a TYAD employee who holds OPSEC Level II certification (example: TYAD OPSEC Officer or Public Affairs personnel) before any imagery is distributed.

**COMMUNICATIONS SECURITY (COMSEC)** *(If applicable)* All telephonic and electronic communications with DoD organizations are subject to Communications Security (COMSEC) review and monitoring. The contractor is advised that any calls placed to or received from a DoD organization may be subject to monitoring and recording. The contractor shall ensure frequent dissemination of this notice to all employees who communicate with DoD personnel.

**Information Security (INFOSEC).** The contractor shall comply with all applicable regulations for the protection of government information. Information handled under this contract is categorized as either Controlled Unclassified Information (CUI) or Classified National Security Information (CNSI).

**Controlled Unclassified Information (CUI)** The handling, marking, safeguarding, and destruction of all CUI shall be in strict accordance with DoD Instruction 5200.48, *Controlled Unclassified Information (CUI)*. Specific contractor responsibilities are detailed in the "Safeguarding CUI" section of this document.

**CUI Training Requirement** Any contractor or subcontractor personnel who will have access to CUI under this contract must complete mandatory CUI training prior to accessing such information. The DoD Mandatory Controlled Unclassified Information (CUI) Training" course available on the DCSA CDSE Security Awareness Hub (<https://securityawareness.dcsa.mil/cui/>) satisfies this requirement. Completion certificates shall be provided to the COR upon request.

**Contractor Responsibilities for Handling CUI** The contractor shall comply with all CUI requirements outlined in Executive Order 13556 and 32 CFR Part 2002. The contractor's responsibilities include, but are not limited to:

- Marking: Applying uniform CUI markings to all CUI data and deliverables.
- Access Controls: Restricting CUI access to personnel with a lawful government purpose and validated need-to-know.
- Flow Down: Ensuring all CUI protection requirements are passed down to subcontractors.
- Physical Safeguarding: Implementing appropriate physical controls (e.g., locked storage, controlled-access areas) for all CUI, whether in hard copy or on electronic media.
- Incident Reporting: Reporting any actual or suspected loss or compromise of CUI to the COR immediately.



- Disposition: Returning all CUI to TYAD control or destroying it in accordance with DoD and Army guidelines upon contract completion.

**Classified National Security Information (CNSI) (If applicable)** If this contract requires access to CNSI, all such information shall be handled, stored, and protected in strict accordance with AR 380-5, *Army Information Security Program*, the National Industrial Security Program Operating Manual (NISPOM), and the security classification guidance provided in the DD Form 254 issued for this contract.

**SECURITY CLEARANCES AND ACCESS TO CLASSIFIED INFORMATION (If applicable)** Performance of this contract requires contractor access to Classified National Security Information. The definitive guidance for classification requirements is provided in the DD Form 254, *Contract Security Classification Specification*, which is attached to and made a part of this contract.

The contractor shall comply with FAR 52.204-2, *Security Requirements*, the Security Agreement (DD Form 441), and the National Industrial Security Program Operating Manual (NISPOM). The contractor is responsible for ensuring all personnel who require access to classified information possess the appropriate security clearance and need-to-know before access is granted.

**Physical Security.**

**Safeguarding of Government Property** The Contractor shall be responsible for safeguarding all government equipment, information, and property provided for Contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

**Key Control (If applicable)** The Contractor shall establish and implement methods of making sure all keys and key cards issued to the Contractor by the Government are not lost, misplaced, or used by unauthorized personnel.

- No keys issued by the Government shall be duplicated.
- The Contractor shall develop a key control procedure, to be included in their Quality Control Plan, which includes procedures for the turn-in of keys by personnel who no longer require access.
- The Contractor shall immediately report any lost or duplicated keys to the Contracting Officer (CO). In the event a key is lost or duplicated, the Government may, at its option, re-key or replace the affected locks, and the total cost shall be deducted from the monthly payment due to the Contractor.

**Lock Combinations (If applicable)** The Contractor shall establish and implement methods to ensure that lock combinations are not revealed to unauthorized personnel. The Contractor shall ensure combinations are changed when personnel with knowledge of the combination no longer have a need-to-know.

(End of Note)

## Standard Specifications for Projects Under the

# **National Environmental Policy Act (NEPA) in Accordance with 32 CFR 651 Proponent ELTY-ISP-N**

## **\*\*\*Spill Response Procedures 1-2-3\*\*\***

1. Stop work
2. Call 911
3. Evacuate Area

## **\*\*\*\*\*Damaged Asbestos?\*\*\*\*\***

Environmental Questions?  
Call Environmental Branch (EB)  
570-615-7098

### **1. Air Pollution Control**

The contractor must control fugitive emissions, including dust, during the course of their contract. The contractor must obtain approval from the Environmental Branch (EB) prior to exhausting equipment to the outside. The contractor must not allow any pollutant or particulate matter to be released to the atmosphere at levels that are visible from outside of Tobyhanna Army Depot (TYAD). The contractor must not perform work that will release pollutants or particulate matter to the atmosphere when the wind speed exceeds ten miles per hour and will result in adverse effects to the surrounding areas. TYAD will monitor the wind speed; it is the contractor's responsibility to obtain wind speed information through the Contracting Officer Representative (COR).

### **2. Asbestos**

The contractor must ensure that all materials used in the performance of this contract are asbestos-free.

Unless specified in the contract, the contractor must not disturb any existing Asbestos-Containing Material (ACM) in the performance of this contract. If ACM, or suspect ACM might be disturbed in performance of this contract, the contractor must avoid encountering the material and immediately notify the COR and the Contract Administrator in writing. The COR must coordinate with EB to have the material tested to determine if there is ACM. If the material is determined to be ACM and the contractor cannot avoid disturbing the material, the COR will notify the Contracting Officer. The Contracting Officer will direct a change pursuant to the contract clauses entitled "Changes" and "Differing Site Conditions." If ACM, or suspect ACM has been disturbed, the contractor must immediately notify the COR and call the EB. The contractor will shut down and not move any equipment or supplies near the damaged ACM. The contractor will evacuate all non-contaminated contractor personnel from the immediate vicinity. Any contractor personnel thought to be contaminated with asbestos must remain in the area until the EB responds. If the damaged material is determined to be

ACM and there is potential for further damage, the Contracting Officer will direct a change pursuant to the clauses of the contract clauses entitled “Changes” and “Differing Site Conditions.”

Asbestos abatement required under the contract as originally awarded must be in accordance with United Facilities Guide Specification 02 83 14 00 10 and as otherwise required in the contract. Asbestos abatement not required under the contract as originally awarded, can be incorporated into the existing contract via contract modification, or by the Government taking responsibility for the asbestos abatement. The method of acquiring the abatement is at the discretion of the Government. The contractor must have an asbestos abatement work plan that has been approved by EB prior to beginning any asbestos abatement work.

### **3. Backflow**

The contractor shall have a backflow prevention device installed on all contractor equipment that is connected to TYAD’s water distribution system. The contractor shall have a water meter installed to monitor water consumption during all phases of the contract. Water use will be reported monthly to the COR.

### **4. Burning**

The contractor must not burn refuse and debris anywhere on TYAD.

### **5. Buy Recycled-Content Materials**

The Contractor must comply with [Resource Conservation and Recovery Act \(RCRA\) Section 6002](#) (42 U.S.C. 6962, Federal Procurement) in the acquisition of materials with recycled content. Specific designated items in this contract for which recycled content standards have been established have been set forth in the specification (e.g., insulation, roofing materials, carpet, carpet pad, paint, floor tiles, shower and restroom dividers). Recovered Material Certification: As required by the RCRA, the contractor must certify that the percentage of recovered materials to be used in the performance of the contract will be at least the amount required by the applicable contract specifications (see Federal Acquisition Regulation (FAR) Provision 52.223-4, Recovered Material Certification). Prior to application for final payment, the contractor must provide a report in accordance with FAR Clause 52.223-9, Estimate of Percentage of Recovered Material Content for Environmental Protection Agency (EPA) Designated Items, to the Contracting Office. Compliance with this program does not relieve the contractor from meeting all other specification requirements.

### **6. Cultural Resources**

The contractor must not adversely affect any property listed on the National Register of Historic Places (NRHP) or properties eligible for inclusion on the NRHP without consultation and approval from the EB through the COR. If there is a discovery of any historic properties, including archeological sites and graveyards, work will cease immediately until requirements of National Historic Preservation Act, as amended, have been met. All archaeological artifacts found at TYAD or TYAD-controlled properties are U.S. Government property until a determination is made otherwise.

## **7. Demolition Notification**

If a project involves the demolition of any load-bearing structural members, whether or not asbestos is present, 25 days prior to the demolition, the Commonwealth of Pennsylvania [Asbestos Abatement and Demolition/Renovation Notification Form 2700-FM-BAQ0021](#) must be submitted to EB as specified in the [Unified Facilities Guide Specification 02 82 13.00 10](#).

## **8. Drinking Water**

The contractor must not perform any work on the TYAD potable water system prior to obtaining approval from the EB and the Installation Planning and Maintenance Division certified operator through the COR. If a permit is required due to construction or proposed chemical feed changes, it will be the responsibility of the contractor to obtain all permits associated with the project. Permit applications will first be reviewed and approved by the Environmental Branch before being submitted to regulatory authorities. Any piping or additions added to the TYAD water system must be disinfected following ["American Water Works Association circular C651-14 "Disinfecting Water Mains."](#) Construction will be kept outside of drinking water wellhead protection zones when feasible. All new buildings and remodeled buildings will be equipped with a water meter that can easily be read from the exterior of the building.

## **9. Endangered Species**

The contractor is responsible for meeting requirements of the [Endangered Species Act of 1973](#). The contractor must not disturb any endangered species, their habitat or offspring during the implementation of this contract.

## **10. Emergency/Spills**

All emergencies and spills must be reported to the TYAD Fire Department by calling 911 from a TYAD phone or (570) 415-7300. If a 911 call is placed on a cell phone, the call will go to the Monroe County Emergency Office. Notify the Monroe County Emergency Office that you are at TYAD, and the call will be forwarded to TYAD's Fire Department. The contractor must ensure all personnel working on site are trained in the proper procedure according to [29 CFR 1910.120](#) (if applicable) to initiate a spill response to handle the hazardous substances they are working with. The contractor will take the necessary actions to prevent and contain spills of hazardous materials.

## **11. Energy Resilience and Mission Readiness**

[The Energy Policy Act of 2005](#) section 109 and the Energy Independence and Security Act of 2007 require all new construction at federal facilities to be 30% better than ASHRAE 90.1. Energy Policy Act of 2005 section 104 and the [Energy Independence and Security Act of 2007](#) require all new equipment to be Energy Star qualified when available. This is applicable to heating, ventilation and air conditioning (HVAC) equipment, plumbing, building materials, lighting, commercial food service equipment and appliances.

## **12. Environmental Automation and Control Systems**

The contractor will not alter, modify, remove or tamper with any environmental automation or control system unless previous arrangement has been made with EB. This includes sensors, programmable logic controllers, equipment housing, power supplies, meters or other hardware/sensor technology.

### **13. Erosion and Sedimentation Control**

The contractor shall protect streams, lakes and wetlands from sediment discharges caused by the contractor's activities. The contractor shall also provide (where applicable) an erosion and sedimentation control plan in compliance with state and local laws and regulations, to the COR for approval prior to executing any soil-disturbing activities. The contractor must submit a National Pollutant Discharge Elimination System Permit (NPDES) to the Pennsylvania Department of Environmental Protection (PADEP) prior to any construction activity that encompasses more than one acre. All permits must be reviewed and approved by the EB prior to being sent to any regulatory authority. The contractor shall not disturb any wetlands. The contractor is to place silt sock around dirt, rock, or construction debris to ensure runoff does not occur. The contractor will place silt sock, or drain covers around/in storm drains surrounding the construction and downstream of the site. Contractor will remove all silt fencing and other temporary control measures once the site is stabilized. Contractor will remove all spoils from TYAD unless a previously approved disposal site has been established. The contract COR will be responsible for management and control of the spoil's disposal site.

### **14. Fluorescent and Mercury-Bearing Lamps**

The contractor is to collect, containerize, manage and recycle fluorescent and mercury-bearing lamps in accordance with [40 CFR 273](#) Standards for Universal Waste Management. A copy of the manifest must be given to the EB through the COR five days in advance of shipment by the contractor so that it can be reviewed for accuracy and completeness. The contractor must install low mercury bulbs when available.

### **15. Hazardous Materials Stored and Labeled**

The contractor must ensure all hazardous materials (HM) at the work site are properly stored and labeled. The contractor must not leave any HM behind at the completion of the job for any reason. HM must not be stored outside without adequate secondary containment and shelter.

### **16. Hazardous Waste**

The contractor must ensure that all hazardous wastes (HW) at the work site are properly stored and labeled in a pre-approved location designated by the EB. The contractor must provide copies of any shipping documents for HW/Universal Waste/Toxic Substances Control Act waste. If the TYAD EPA number is being used for shipping purposes, only EB is authorized to sign a manifest, and the manifest (or copy) must be supplied prior to the day of shipment for review. The EB will keep original copies. If HW or waste requiring special handling (e.g., asbestos) is being turned over to the government for disposal, the contractor must notify the EB through the COR when

the waste is ready to be moved.

#### **17. ISO 14001**

TYAD is an ISO 14001 certified facility. All contractor and subcontractor employees on site must comply with TYAD Regulation 200-5, "Environmental Management System (EMS)." The contractor may obtain these regulations through the project COR.

#### **18. Limit of Disturbance**

The contractor must confine the limit of disturbance of the project to the smallest area possible.

#### **19. Mercury-Bearing Equipment**

The contractor must not install any equipment, switches, or devices (including thermostats) that contain mercury or lead.

#### **20. Safety Data Sheets (SDSs)**

The contractor must submit SDSs for all hazardous materials proposed for use, including paints, solvents, adhesives, etc., to the EB through the COR five working days prior to material being brought on post. As of June 1, 2015, all Material Safety Data Sheets (MSDS) must be replaced with new Safety Data Sheets (SDS). EB will no longer be accepting older legacy MSDS sheets, and the contractor must submit the current SDS for the hazardous material. The contractor must keep a copy of all SDSs required for the project at the jobsite.

#### **21. Migratory Bird Protection**

The contractor is responsible for meeting requirements of the [Migratory Bird Treaty Act of 1918](#) (as amended). The contractor must not disturb any migratory bird, their nesting area or offspring during the implementation of this contract.

#### **22. National Pollutant Discharge Elimination System (NPDES) Permits**

The contractor must not perform any work on existing NPDES structures or treatment units unless previously approved in writing by the Installation Planning and Maintenance Division certified operators and the Environmental Branch. This includes work within the sewage treatment plant, sewage lift stations, sewage conveyance pipes, Industrial Operations Facility pretreatment plant, and storm water sewer systems. If a permit is required, it will be the responsibility of the contractor to obtain all permits prior to work being performed. All permit application packages must first be reviewed by the Environmental Branch prior to being sent to any regulatory authority. All liquids (chemical, cleaner, and lubricants) in containers, drums, and IBC totes are to be stored on secondary containment at all times. The container shall be labeled with the contents inside and an SDS sheet must be provided to EB.

#### **23. Net Zero Water**

The contractor will minimize the use of potable water during the construction project. Water used during the construction project will be monitored and measured using portable water meters if possible. Installed restroom equipment will consist of high-efficiency fixtures that use reduced volumes of water. Use of flow regulation devices must be approved by EB prior to installation. Employ strategies that in aggregate use 20% less water than the water use baseline calculated for the building after meeting the Energy Policy Act of 1992 fixture performance requirements. Automatic hands-free flushometers will not be used. Water-free urinals will not be used. Flushometers will be the piston variety that fail in the closed position. New building construction and renovations will include installation of a water meter that is capable of being read from the outside of the building.

#### **24. Noise**

The contractor must not allow the noise level to exceed 65 decibels at any point outside TYAD property. If noise levels exceed 65 decibels, a plan must be prepared by the contractor to mitigate the noise levels and submit to the EB for approval through the COR. The contractor will monitor the fence line to confirm the limit.

#### **25. Ozone Depleting Substances (ODS)**

The contractor must be responsible for ensuring that all personnel who perform maintenance and repair activities on refrigeration equipment have been trained and certified by an EPA-approved [Section 608 program](#). The contractor must not use Class I or Class II ODS or install equipment that contains Class I or II ODS. Beginning 1 Jan 26, the contractor must adhere to all AIM Act regulations regarding Hydrofluorocarbon refrigerants, Title 40, Chapter I, Subchapter C, Part 84.

#### **25. Paints**

The contractor must not use paints containing zinc chromate or strontium chromate pigments and paints must not contain a concentration of lead greater than 0.009 percent. Coatings used within permitted paint spray booths must not have a Volatile Organic Compound (VOC) content greater than 3.50 pounds per gallon.

#### **26. Pest Management**

At no time during the execution of this contract must the contractor provide a food source or harborage for any pests. The contractor must coordinate through the COR to the EB prior to the application of any pesticide (PA state license is required for pesticide applications). All pesticides are required to be approved by the EB. The contractor must report all usage of pesticides the day they are applied through the COR to the EB. After completion of the contract, the contractor must ensure there is no passage for pests to enter facilities or structures related to work performed by the contractor.

#### **27. Polychlorinated Biphenyls (PCBs)**

The contractor must not bring items containing PCBs onto TYAD. Light ballasts that are clearly marked "Contains no PCBs," or that are marked with a manufacture date after 1978 must be disposed of by the contractor as construction demolition debris. Any light ballast that is not



marked as containing no PCBs that has a manufacture date prior to 1978, or that cannot be determined whether it contains PCBs, must be disposed of by the contractor at an approved and licensed facility for PCBs. The contractor must submit a shipping manifest and certificate of disposal of the PCB-containing items to the EB through the COR.

## **28. Recycling**

The contractor must comply with TYADs general recycling plan for recyclable materials such as aluminum, steel, cardboard, paper, plastic and wood. The contractor should contact the EB for additional information on the recycling of materials through the COR. The COR will coordinate with EB to have the contractor recycle metals, cardboard, etc., through TYADs recycling program. All Construction and Demolition (C&D) material transferred from a construction project into the TYAD recycling program must be segregated and material type and weights submitted to the project COR for consolidation. Any material entering the TYAD recycling program that is not documented and properly reported will be absorbed into the TYAD recycling program and not count towards the C&D requirement of the project. Clean wood shall be recycled by the contractor off TYAD property.

## **29. Refuse and Construction Demolition Debris Removal and Disposal**

During the performance of all construction, renovation and demolition projects, a minimum of 60 percent of all non-hazardous construction demolition debris shall be diverted from the landfill for reuse or recycling. The contractor shall provide written certification to the COR of the type and volume of debris reused or recycled from the contract. All refuse and the construction demolition debris not recovered for reuse or recycling shall be disposed of at a ADEP permitted and Monroe County Municipal Waste Management Authority authorized facility. The contractor shall comply with the Monroe County Solid Waste Management Plan, PA Act 90, and all applicable licensing requirements. All waste must be transported to designated Monroe County landfills; see <http://www.thewasteauthority.com> for details. For questions, contact the Monroe County Municipal Waste Management Authority at (570) 643-6100. The contractor shall provide a disposal certificate or landfill weight slip to the COR for all solid waste disposed of during the performance of this contract. The COR will then provide copies of the disposal certificate or landfill weight slips with the quarterly consolidated C&D report from The Installation Planning and Maintenance Division to EB.

## **30. Removal Materials**

The contractor must remove from the site prior to the acceptance of work by the Government, all materials not identified to remain in place, including excess paints, building materials and equipment purchased by the contractor for the execution of this project.

## **31. Site Preservation and Restoration**

The contractor must ensure that the land resources associated under this contract be



preserved in their present condition or be restored to a like condition after completion of construction. This post construction appearance will appear to be natural and not detract from the appearance of the project.

### **32. Trees and Shrubs Protection**

The contractor must be responsible for the protection of all trees and shrubs on site. The contractor must not allow any heavy equipment, vehicular traffic or stockpiling of materials within ten feet from the drip line of any tree. The contractor must not allow any toxic materials to be stored within 100 feet (35.5 meters) of the drip line of any tree. The contractor must not nail protective devices, signs, utility boxes or other objects to trees to be retained on the site.

### **33. Unexploded Ordnance (UXO)**

All work that is done in the UXO area must include the support and clearance by a UXO technician. In addition, all personnel entering the UXO area must have UXO recognition training. The COR will escort the contractor to the EB for UXO recognition training. The COR will provide a map of the UXO area to the contractor.

### **34. Water Quality**

The contractor shall not pollute streams, lakes or reservoirs. All work under this contract shall be performed in such a manner that pollution will not be created in streams, surface waters or underground water located within, or adjacent to the project area. The contractor shall not spill, emit, dump or otherwise discharge any hazardous, toxic, harmful or unauthorized pollutant, substance or material, including petroleum products, cleaning agents or paints, onto the ground, into the air or into any waters or nearby storm drain. The contractor shall execute any preventative measures required to prevent any hazardous, toxic or harmful material stored or used on the project site from entering any stormwater drain. Nothing shall be allowed to spill, emit, dump or otherwise discharge any hazardous, toxic or harmful material or pollutant into any sink, toilet, drain, utility or receptacle without written permission from the EB through the COR. The contractor shall protect streams, lakes and wetlands from sediment discharges caused by his activities. The contractor shall contract the EB immediately in the event of a spill.